

Notice from the National Commission for Data Protection regarding
Bill No. 8251 on the establishment of a Digital Mobility Observatory
Deliberation No. 96/AV42/2023 of November 10, 2023.

1.

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Furthermore, Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

2.

By letter dated June 14, 2023, Mr. Minister of Mobility and Public Works invited the National Commission to express its opinion on Bill No. 8251 concerning the establishment of a Digital Mobility Observatory (hereinafter referred to as the "Bill").

3.

According to the explanatory memorandum, the establishment of a Digital Mobility Observatory (hereinafter referred to as the "Observatory") under the authority of the minister responsible for Transport (hereinafter referred to as the "Minister") responds to the coalition agreement 2018-2023. Indeed, the said agreement states the following: "To effectively and continuously collect the data necessary for mobility planning adapted to the evolving needs of the population and businesses in the particularly dynamic context of the Grand Duchy, a mobility observatory is established under the supervision of the Ministry responsible for mobility. This observatory will seek synergies in the collection of data by various public and private actors, will plan the collection of missing data, including through regular household surveys, and will make the data available to the relevant stakeholders."

The Observatory will more concretely have the mission of providing the necessary data for the planning of infrastructure and mobility offerings, its objective being to develop knowledge regarding "mobility behaviors, that is to say, why, how, where, and when people move," on the one hand, and "the efficiency of the use of...

CNPD

Notice from the National Commission for Data Protection
regarding Bill No. 8251 on the establishment of a Digital Mobility Observatory

1/19

infrastructures and transport services, that is to say the relationship between the mobility flows effectively carried by the various offers [...] and their maximum transport capacities, on the one hand.¹

4.

The CNPD notes in this context that the European Union supports, through its Directive 2010/40/EU of July 7, 2010² and its Delegated Regulation 2017/1926 of May 31, 2017 complementing the said directive³, two legislative texts also mentioned in the commentary on the articles of the bill under review⁴, the provision of information services on multimodal travel.⁵

5.

More concretely, the authorities responsible for transport, infrastructure managers, transport operators,

and transport service providers - whether public or private - are required to make available the data of their services and networks that are necessary for informing travelers in order to facilitate, through the development of intelligent transport systems, door-to-door travel within the European Union. Each Member State must therefore establish a national access point that includes the available transport data for its country and centralizes access to said data. In the Grand Duchy, this point takes the form of an Internet portal providing access to all available data related to mobility in Luxembourg.⁶

6. Nevertheless, the National Commission observes that the scope of the missions of the Observatory far exceeds that provided for by the aforementioned European texts, notably due to the provisions of the bill having an impact on the respect for privacy and the protection of personal data. After some preliminary remarks, it will therefore successively analyze the different provisions of the bill following the order of drafting of said bill to express its recommendations.

1 See explanatory memorandum, page 2.

2 Directive 2010/40/EU of the European Parliament and of the Council of July 7, 2010 concerning the framework for the deployment of intelligent transport systems in the field of road transport and interfaces with other modes of transport (Text presenting interest for the EEA).

3 Delegated Regulation (EU) 2017/1926 of the Commission of May 31, 2017 complementing Directive 2010/40/EU of the European Parliament and of the Council regarding the provision, throughout the Union, of information services on multimodal travel (Text presenting interest for the EEA).

4 See in this context the circular letter of February 22, 2012 regarding Directive 2010/40/EU of the European Parliament and of the Council of July 7, 2010 concerning the framework for the deployment of intelligent transport systems in the field of road transport and interfaces with other modes of transport.

5 That is to say concerning the combined use of several modes of transport (for example, train, bus, tram, taxi, bicycle, own car, etc.) during the same journey.

6 Available at this link: <https://data.public.lu/fr/Daaes/topics/mobility/>.

****CNPD****

****Opinion of the National Commission for Data Protection****

****regarding bill No. 8251 creating a Digital Mobility Observatory****

****2/19****

1.

Preliminary Remarks

1.1. Regarding the Data Controller

7.

According to Articles 1.1 and 4.1 of the draft law, the minister designates a coordinator of the Observatory from among his agents, created under his authority. The commentary on Article 1 of the draft law specifies in this regard that the Observatory is a "service of the Ministry responsible for transport" and that it "does not have administrative independence."

8.

According to Article 5 of the draft law, the minister acts as the data controller for personal data necessary to fulfill the missions of the Observatory.

9.

The CNPD wishes to remind that in accordance with Article 4.7 of the GDPR, the data controller is "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller may be designated or the specific criteria applicable to its designation may be provided for by Union law or by the law of a Member State."

10.

With regard to the concepts of data controller and processor, it emerges from the guidelines of the European Data Protection Board (hereinafter "EDPB") on this subject that "[...] even if a particular service or a specific unit of an organization assumes operational responsibility for ensuring compliance with certain processing activities, this does not mean that this service or unit (rather than the

organization as a whole) becomes the data controller." It is also indicated that "[e]mployees who have access to personal data within an organization are generally not considered as 'data controllers' or as 'processors,' but rather as 'persons acting under the authority of the data controller or under that of the processor' within the meaning of Article 29 of the GDPR."

11.

Furthermore, the same guidelines specify that "[w]hen the data controller is specifically identified by law, this designation is decisive for defining who acts as the data controller. This presupposes that the legislator has designated as the data controller the entity that is truly able to exercise control."

12.

It should also be noted that the concept of data controller is a functional concept in that it aims to allocate responsibilities based on the actual roles played by

7 EDPB, Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, version 2.0, adopted on July 7, 2021, point 18.

8 Point 19, footnote 9 of the aforementioned guidelines.

9 Point 23 of the aforementioned guidelines.

CNPD

Opinion of the National Commission for Data Protection

on draft law No. 8251 concerning the creation of a Digital Mobility Observatory

3/19

the parties. Thus, it is based on a factual analysis rather than a formal one. 10 This means that the legal status of the minister as the data controller, as defined by the text under review, must be determined by his actual activities rather than by his formal designation. Taking into account the aforementioned explanations regarding the structure of the Observatory, the CNPD considers that, even though the future coordinator, designated from among the minister's agents, will be responsible for the operation of the Observatory and the implementation of related data processing, he will always act under the authority of the minister. Under these conditions and based on the information currently available to it, the National Commission believes that the minister would indeed be considered the controller of personal data processing carried out by the Observatory.

1.2. Regarding the legal basis and the principles of necessity and proportionality

13. In the explanatory memorandum, the authors of the draft law explain why the Observatory would need to process personal data to fulfill its missions. More specifically, it is stated that "to be able to adapt the mobility offer to the needs of the population, it is necessary to understand the mobility behaviors and needs of a representative sample of the population residing or working in the Grand Duchy. However, to ensure that the sample questioned during a mobility survey is indeed representative, it is essential to collect, of course in a pseudonymized manner, personal data such as age group, gender, postal code of the place of residence and work. [...]."

14. Furthermore, it emerges from the explanatory memorandum that the authors of the draft law consider that, since the mobility of individuals is a fundamental aspect of any open society, the processing in question takes place in the "public interest." They specify that, in accordance with Article 6.1.e) of the GDPR, "it is possible to rely on a 'public interest mission' as a legal basis for processing if this mission has a legal basis in Union law or national law. The purpose of this draft law is to specify this legal basis."

15. In addition, the authors refer to Article 6.3 of the GDPR concerning the lawfulness of data processing necessary for the performance of a public interest mission and believe that under said article "it is possible - but not mandatory - to specify, among other things, the categories of data that are subject to processing as well as the individuals concerned by these processes, the entities to which the data may be communicated, and the purposes of such communication. In this draft law, the legislator wishes to provide certain clarifications of this type."

16. The CNPD notes in this context the legislator's interpretation that the mission of the Observatory would be considered as "in the public interest." Indeed, Article 1 of the draft law specifies that the Observatory has "a public interest mission." Nonetheless, the processing 10 Page 3 and point 21 of

the aforementioned guidelines CNPDI Opinion of the National Commission for Data Protection regarding draft law No. 8251 establishing a digital mobility Observatory 4/19

****Personal Data Processing by the Observatory****

Personal data processing carried out by the Observatory must be "necessary" in order to execute the said public interest mission in accordance with Article 6.1(e) of the GDPR. Article 6.3 of the GDPR, which is also mentioned by the authors of the draft law in the explanatory memorandum, states that the law of the Union or the law of the Member States defining the basis for processing necessary for the execution of a public interest mission based on Article 6.1(e) of the GDPR must meet "a public interest objective and be proportionate to the legitimate aim pursued."

17. The National Commission wishes to emphasize in this context that Article 8 of the European Convention on Human Rights guarantees the right to respect for private and family life. Furthermore, Articles 7 and 8 of the Charter of Fundamental Rights of the European Union (hereinafter referred to as the "Charter") grant every person the right to respect for their private and family life, as well as the right to the protection of personal data concerning them. Nevertheless, these fundamental rights are not absolute prerogatives since the possibility of interference or limitation is provided for both by Article 8.2 of the European Convention on Human Rights and by Article 52.1 of the Charter. It is in this context that adherence to the principles of proportionality and necessity is essential, as this interference or limitation can only be justified provided that it is, among other things, necessary in a democratic society, subject to the principle of proportionality.

18. In its judgment of November 22, 2022, the Court of Justice of the European Union specifically highlighted the importance of the necessary and proportionate nature of interference in the rights guaranteed by Articles 7 and 8 of the Charter by ruling that "the provision of personal data to third parties constitutes an interference with the fundamental rights enshrined in Articles 7 and 8 of the Charter, regardless of the subsequent use of the communicated information. In this regard, it matters little whether the information concerning private life is sensitive or not, or whether the individuals concerned have suffered any potential disadvantages as a result of this interference." The Council of State also regularly recalls that access to files and the communication of data to third parties constitute an interference in private life and, therefore, a matter reserved for formal law.

11 The other conditions are that the interference must be provided for by a law accessible to the persons concerned and predictable in its repercussions, that is to say, formulated with sufficient precision, respects the essential content of the right to data protection, and effectively meets public interest objectives or the need to protect the rights and freedoms of others. For a more detailed analysis of these conditions, see deliberation No. 2/2021 of February 4, 2021, of the National Commission for Data Protection, doc. pari. No. 7425/09, point 1.1.b).

12 CJEU, judgment of November 22, 2022, WM and Sovim SA v. Luxembourg Business Registers, joined cases C-37/20 and C-601/20, point 39 and cited case law, and points 63 to 65 and cited case law.

13 See, in particular, opinion 60.250 of March 22, 2022, doc. pari. No. 7578/01, p. 5; opinion 53.322 of July 12, 2019, doc. pari. No. 7425/04, p. 9; opinion 51.586 of June 7, 2016, doc. pari. No. 6975/05, p. 4.

****CNPDI****

****Opinion of the National Commission for Data Protection****

****Regarding Draft Law No. 8251 on the Creation of a Digital Mobility Observatory****

5/19

19.

In domestic law, it is interesting to note that Article 31 of the revised Constitution, applicable since July 1, 2023, states that "everyone has the right to informational self-determination and the protection of personal data concerning them. Such data may only be processed for purposes and under conditions determined by law." Furthermore, while the Constitutional Court has already recognized in its analysis of the conformity of a legislative text with the Constitution that the principle of proportionality is one of

the general principles of law, alongside, for example, the principle of equality before the law or the principle of legal certainty, it was only by its ruling of March 19, 2021, that the principle of proportionality was formally declared to have constitutional value. Since the aforementioned revision of the Constitution on July 1, 2023, the principles of necessity and proportionality are now enshrined in the Constitution. Indeed, according to Article 37 of the revised Constitution, "any limitation on the exercise of public freedoms must be provided for by law and respect their essential content. In accordance with the principle of proportionality, limitations may only be imposed if they are necessary in a democratic society and effectively meet objectives of general interest or the need to protect the rights and freedoms of others."

20.

In this case, as the draft law provides for access to files and the communication of personal data to a third party, namely the Observatory, this constitutes an interference in the private lives of the individuals concerned, and the principles of necessity and proportionality must therefore be respected. Nevertheless, based on the above and subject to the comments that follow, the National Commission is generally questioning whether the processing of personal data provided for in the draft law respects the aforementioned principles, that is to say, whether there is truly a fair balance between the objectives pursued by the draft law and the means employed to achieve them. It believes that particular attention should be paid to what the draft law stipulates in its Article 8, that the Observatory would have access to a whole series of personal data, such as place of residence, professional situation, gender, household composition, or income range, which are held by various public administrations such as the Administration of Direct Contributions or the General Inspectorate of Social Security. Moreover, said article obliges private entities to grant access to their data to the Observatory, such as data concerning the movements of mobile phones held by mobile phone operators or data concerning place of residence, place of work, sector of activity, and professional situation as held by employers.

14 See, for example, the ruling of the Constitutional Court No. 152/21 of January 22, 2021 (Mem. A - No. 72 of January 28, 2021).

15 Ruling of the Constitutional Court No. 146/21 of March 19, 2021 (Mem. A - No. 232 of March 23, 2021), see also ruling No. 165/21 of May 12, 2021 (Mem. A - No. 372 of May 17, 2021).

16 See Article 6.1 of the draft law.

CNPD

Opinion of the National Commission for Data Protection
regarding draft law No. 8251 establishing a Digital Mobility Observatory
6/19

The authors of the bill specify in this context that "the mobility behavior of a particular individual does not constitute a mobility policy issue and therefore does not concern the Observatory" and that "in any case, the identity of the travelers whose behavior and mobility needs are observed is of no interest to the Observatory." While considering that the bill provides that the Observatory would only collect personal data in pseudonymized form, the CNPD nonetheless questions whether, in light of all the personal data to which the Observatory would have access, individuals could not be indirectly identified along with their mobility habits and preferences, even if this is not the intended purpose of the Observatory.

21. Taking into account the principles of necessity and proportionality, the National Commission first wonders whether the bill could not foresee the realization of the Observatory's missions without processing personal data, that is to say, by conducting the necessary mobility studies to achieve the intended purposes using anonymized data and not just pseudonymized data. It would like to remind in this regard that the anonymization process makes it impossible to (re)identify a person. It is therefore an irreversible process. In contrast, pseudonymization allows for the re-identification of a specific person by using additional information. This distinction is important: while the GDPR applies to pseudonymized data, anonymized data does not fall within the scope of the regulation. Recital (26) of the GDPR states in this regard that there is "no need to apply the principles relating to the protection of

personal data to anonymous information, that is to say, information that does not relate to an identified or identifiable natural person, nor to personal data rendered anonymous in such a way that the data subject is not or no longer identifiable. This regulation, therefore, does not apply to the processing of such anonymous information, including for statistical or research purposes."

More concretely, without questioning at this stage whether access to all the data listed in Article 8 of the bill is truly proportionate and necessary, the CNPD wonders whether the authors of the bill could not replace the obligation imposed on the public and private entities listed in said Article 8 to grant the minister access to a whole list of personal data, with an obligation to anonymize said data before transmitting it to the minister.

22. Finally, again considering the principles of necessity and proportionality, it also questions whether other less intrusive means from the perspective of privacy and data protection could not be implemented in order to achieve the objectives pursued by the Observatory, namely to improve the mobility offer by adapting it to the needs.

of the population. Such a means, less intrusive to privacy, or even outside of any collection of personal data, would be, for example, the development and improvement of current counting systems. In this context, it is worth mentioning the permanent and automatic counting system of road traffic through counters installed throughout the Grand Duchy on highways, national roads, and bike paths, carried out by the Administration of Bridges and Roads, or the counting of passengers in public transport.

23. At the same time, the Observatory could still conduct mobility surveys as currently provided for in Article 7 of the draft law. For comparison, Brussels Mobility, an administration of the Brussels-Capital Region responsible for studying the behavior of Brussels residents in terms of travel, conducted a very detailed survey between October 2021 and October 2022 on the characteristics and habits of mobility of families and individuals. In the same vein, the Mobility Barometer constitutes one of the flagship satisfaction surveys of the "Good move" Observatory of the same Brussels administration, aimed at collecting the level of satisfaction of users regarding the mobility offer in a broad sense and its interaction with the demand for travel.

2. Regarding the collection of data by the Observatory (Article 6 of the draft law)

24. According to Article 6 of the draft law, the Observatory "only collects and requests personal data in pseudonymized form and without the key allowing the re-identification of individuals." According to the commentary on the articles, the Observatory "is exclusively interested in flows that are sufficiently significant to impact transport networks. In any case, the identity of the travelers whose behavior and mobility needs are observed is of no interest to the Observatory."

25. Subject to its comments under point 21 regarding the possibility of considering the execution of the Observatory's missions without processing personal data, the CNPD wishes to remind that, in practice, pseudonymization consists of replacing directly identifying data (such as name, first name, or exact address) in a dataset with indirectly identifying data such as an alias or a sequential number.

20 See on the website of the said Administration:

<https://pch.gouvernement.lu/fr/administration/competences/comptage-traffic.html>

21 See in this context note #01 of May 2023 from the Observatory titled "Counting Passengers in Public Transport" available at:

<https://transports.public.lu/dam-assets/planifier/observatoire/odm-note-01-mai-2023.pdf>. Also see the document titled "Intelligent Transport Systems, Report on National Activities and Projects of Luxembourg" from August 2020 by the Ministry of Mobility and Public Transport, available at: https://transport.ec.europa.eu/system/files/2021-06/2021_lu_its_progress_report_2020.pdf.

22 See in this context its comments under the section "3. Regarding the surveys conducted by the Observatory (Article 7 of the draft law)."

23 See on their website: <https://mobilite-mobiliteit.brussels/fr/ecd>

24 Observatory "Good move" website:

<https://data.mobility.brussels/home/fr/observatoire/barometre-de-la-mobilite/>.

CNPD

****Pseudonymisation and Data Processing****

Pseudonymisation allows for the processing of individuals' data without being able to directly identify them. Unlike anonymisation, pseudonymisation is a reversible operation. It is therefore possible to retrieve a person's identity if additional information is available; that is to say, even if the Observatory does not possess the "key allowing for the re-identification of individuals," at least the entities listed in Article 8 of the draft law could still link the data transmitted to the Observatory to a specific individual.

Recital (26) of the GDPR specifies in this context that "personal data that have been subject to pseudonymisation and that could be attributed to a natural person by the use of additional information should be considered as information concerning an identifiable natural person. To determine whether a natural person is identifiable, all means reasonably likely to be used by the data controller or by any other person to identify the natural person directly or indirectly, such as targeting, should be taken into account. To establish whether means are reasonably likely to be used to identify a natural person, all objective factors should be considered, such as the cost of identification and the time required for it, taking into account the technologies available at the time of processing and the evolution of those technologies."

26. Furthermore, the CNPD raises the question of who will be responsible for the pseudonymisation of the data, and prior to what action. It understands, based on the wording of the provision under review, that the data should be pseudonymised prior to any transfer or access to data by the Observatory. Consequently, it deduces that the task of pseudonymising the data would fall to each of the entities listed in Article 8 of the draft law, and not to the Observatory; otherwise, this guarantee could not be considered effective.

27. Alternatively, this task could be performed by a "trusted third party," which must be understood as a natural or legal person authorized to carry out legal security operations, including pseudonymisation or anonymisation services, and who presents guarantees of independence, competence, and is not in a conflict of interest regarding the data they process in the context of their various activities. The CNPD refers in this regard to its opinion of December 2, 2016, in which it already indicated that "a general framework for the activity of trusted third parties providing this type of service would be preferable and would support the development of innovative services in terms of pseudonymisation and anonymisation in Luxembourg. It further considers that such services should be reserved for actors presenting guarantees of independence, competence, and not being in a conflict of interest regarding the data they process in the context of their various activities."

28. The CNPD notes in this context that Article 6.2 of the draft law would allow the Observatory to use different sets of pseudonymised data within the framework of the same activity.

25 Opinion of the National Commission for Data Protection of December 2, 2016, regarding draft law No. 7061 amending certain provisions of the Social Security Code, parliamentary document 7061/03, p. 4.

****CNPD****

Opinion of the National Commission for Data Protection regarding draft law No. 8251 establishing a Digital Mobility Observatory.

9/19

analyze, "but not in a way that would allow for the re-identification of individuals." While taking into account that the Observatory would not possess data allowing for direct identification such as names and surnames, on one hand, and even if this is not the objective pursued by the Observatory, on the other hand, the CNPD nonetheless wonders, in light of all the personal data to which the Observatory would have access, whether it would not be feasible to link distinct sets of data concerning the same individual. In other words, would it not be possible for the Observatory to use and cross-reference all the data to which it would have access and link them to a specific natural person, thereby allowing for

an indirect identification of said person?

29. The "Article 29" working group, which was replaced on May 25, 2018, by the EDPS, already estimated in an opinion from 2007 that "[t]he effectiveness of the pseudonymization process depends on a number of factors (the stage at which it is used, its level of security regarding the possibility of tracing the information, the significance of the population in which the person is concealed, the possibility of linking individual transactions/records to the same person, etc.). Pseudonyms must be chosen randomly and unpredictably. The number of possible pseudonyms must be large enough that the same pseudonym can never be randomly chosen twice. To ensure a high level of security, it is important that the set of potential pseudonyms is at least equivalent to the range of values of secure cryptographic hash functions."

It is therefore crucial that the entity, or even the entities, responsible for the task of pseudonymizing the data, adhere to the aforementioned principles prior to any data transfer to the Observatory in order to ensure that the pseudonymization process is an effective safeguard to reduce risks for the individuals concerned. In case of doubt, aggregation at a higher level is always preferable. For example, for municipalities with a low number of inhabitants, information on household composition and place of work could be sufficient to re-identify certain individuals through information cross-referencing. Therefore, aggregation at a higher geographical level should be considered.

30. Finally, according to Article 6.3 of the draft law under review, the Observatory "destroys personal data at the end of a processing period not exceeding two years after their receipt."

31. The CNPD wishes to remind in this context that the principle of data retention limitation is one of the key principles of any processing of personal data. More concretely, according to Article 5.1.e) of the GDPR, personal data may only be "kept in a form which permits identification of the data subjects for no longer than is necessary for the purposes for which the personal data are processed [...]."

26 Opinion 4/2007 of the "Article 29" working group on the concept of personal data, adopted on June 20, 2007, p. 20.

CNPD

Opinion of the National Commission for Data Protection
regarding draft law No. 8251 establishing a Digital Mobility Observatory
10/19

Without further explanations either in the text of the draft law or in the commentary on the articles regarding the justification for the retention period of personal data for a maximum of two years by the Observatory, the CNPD cannot express an opinion on the proportionality and necessity of said duration.

3.

Regarding the surveys conducted by the Observatory (Article 7 of the draft law)

32.

According to Article 7 of the draft law, the Observatory may "conduct surveys among representative samples of individuals residing in the Grand Duchy, who use the transport infrastructure in the Grand Duchy of Luxembourg or who own a vehicle that uses the transport infrastructure in the Grand Duchy of Luxembourg," provided that "the participants have given their consent." The commentary on the articles specifies that "in order to determine the representativeness of the sample according to the rules of the art, the Observatory needs to collect personal data. Since before participating in a survey, the person is informed of the purpose of the data collection and can refuse to provide certain data, the predictability of the use of personal data is ensured. This is the case whether the data is collected through a questionnaire or through an application to be installed on the smartphone."

33.

The CNPD wishes to emphasize that all conditions for valid consent as defined by the GDPR must be respected, meaning that consent must be free, specific, informed, and unambiguous. A data subject contacted by the Observatory must therefore not only have the option to "refuse to provide certain

data," but must also be able to refuse entirely to participate in such a survey.

34.

Furthermore, it is not sufficient that "before participating in a survey, the person is informed of the purpose of the data collection," but, in accordance with Article 13 of the GDPR, the minister must provide participants with all the information listed therein at the time when the personal data is obtained. In addition to the purposes of the processing for which the personal data is intended, this also includes the legal basis for the processing, the recipients of the data, the retention period of the data, as well as the existence of the various rights of the data subjects.

35.

Finally, Article 7 of the draft law provides that the surveys in question may be conducted through questionnaires, by phone, or by any other data acquisition system, while the commentary on the articles specifies that the data may be collected by "means of a questionnaire or by means of an application to be installed on the smartphone."

27 See the definition of consent in Article 4(11) of the GDPR. See also Article 7 on the conditions applicable to consent, as well as the guidelines 5/2020 on consent under Regulation (EU) 2016/679 Version 1.1, adopted on May 4, 2020, by the EDPS.

CNPD

Opinion of the National Commission for Data Protection
regarding draft law No. 8251 establishing a digital mobility Observatory
11/19

Nevertheless, it is not clear from the text of the draft law, nor from the commentary on the articles, how the Observatory would obtain the contact details of the said "representative samples of people," namely their postal addresses in order to invite them to participate in such a survey. Would the minister have access to the data from the national register of natural persons (hereinafter referred to as the "RNPP") for this purpose? If so, the CNPD considers it necessary, in the interest of clarity and legal certainty, to include this possibility in the body of the text of the draft law under review. Similarly, Article 14 of the GDPR would need to be respected in this case, as the personal data would not have been collected directly from the data subject. Based on this provision, the minister would need, among other things, to provide the data subjects with information about the source from which their personal data originates.

36. Finally, if the CNPD understands the commentary on the articles correctly, surveys could also be conducted with individuals who neither reside nor work in Luxembourg, but who "visit the Grand Duchy for other reasons, or transit through the Grand Duchy." It questions how the Observatory could contact these individuals in this case, as recourse to the RNPP would not be an option since it does not contain the sought-after contact details.

4. Regarding access to data by the Observatory (Article 8 of the draft law)

37. Article 8.1 of the draft law creates an obligation for the entities listed therein to provide "access to the minister, upon request and within the time limits set in his request, to the personal or non-personal data necessary for the execution of the Observatory's missions as provided for in Article 3, according to the modalities of Article 6 and as specified by the following purposes [...]."

38. The CNPD notes in this context that Article 2, point 4° of the draft law defines access as "the processing, by a data user, of data that has been provided by a data holder in accordance with specific technical, legal, or organizational requirements, without this necessarily implying the transmission or downloading of such data."

39. Upon reading this definition and Article 8 under review, it is unclear how "access" to the personal data held by the various entities would be concretely carried out. Would these entities then transmit the data to the Observatory, even though the aforementioned definition states that access does not necessarily involve "the transmission or downloading of such data," or would the Observatory, for example, have an access code to retrieve the data? Without knowing how this communication will take

place, the question arises, as mentioned in point 26, of who is responsible for pseudonymization.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8251 on the creation of a digital mobility Observatory

12/19

40.

Similarly, regardless of the means of access to the data by the Observatory and subject to the comments that follow, the CNPD believes that the Observatory should only have access to the data listed in Article 8 of the draft law and under no circumstances to the entire database held by the entity concerned.

41.

The National Commission will subsequently analyze in more detail the purposes pursued by the Observatory's access to the data (4.1), as well as the personal data to which the Observatory would have access (4.2).

As a preliminary matter, it wishes to emphasize that it will only take into account in its analysis Article 8.1, points 1° to 3° of the draft law, while it believes, in the absence of contrary indications in the text or the commentary on the articles, that the purposes mentioned in points 4° to 6° are a priori pursued without dealing with personal data. Indeed, it has the impression that the data mentioned in points 4° to 6° are either data concerning legal entities that do not fall within the scope of the GDPR²⁸, or statistical data unrelated to an identified or identifiable natural person, such as data concerning the topology and construction sites of railway networks, data concerning projections and distribution of residents and jobs, or data concerning strategies, plans, and infrastructure and transport service projects.

4.1. Regarding the purposes pursued by access to the data

42.

According to Article 5.1.b) of the GDPR, personal data collected may only be collected "for specified, explicit, and legitimate purposes, and not further processed in a manner incompatible with those purposes [...] (purpose limitation)."

43.

It emerges in this context from the commentary on the articles that "[g]iven that some data is personal data, each piece of data is explicitly linked to a purpose. This purpose never aims to understand the behavior or mobility needs of an individual in particular, but always of a group of people exhibiting similar behavior or mobility needs."

The CNPD indeed notes that points 1° to 3° of Article 8.1 of the draft law enumerate which data, held by which entity, and for what purpose the Observatory would have access. It believes that the determination of the types or categories of personal data that will be processed by purpose is considered one of the essential elements of processing that must be defined in the regulation governing the processing of these personal data.

44.

Purposes 1°, 2°, and 3° are in this context to be considered a priori as "specified" and "explicit" aiming to adapt mobility offers and infrastructures to the

²⁸ See Recital (14) of the GDPR.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8251 establishing a digital mobility Observatory

13/19

request based on the reason for the trip and the type of destination, that is to say between the residence and the workplace (purpose 1°), between the residence and the place of education (purpose 2°), as well as all other reasons for travel (such as leisure) and all types of destinations (such as a sports complex) (purpose 3°). Further explanations can be found in the commentary on the articles.

45.

Considering that the broader purpose of adapting mobility offers and infrastructure to the demand of

the population seems entirely legitimate, on one hand, and without claiming to have the professional expertise in mobility planning, on the other hand, the CNPD nonetheless wonders whether the processing implemented to pursue purposes 1°, 2°, and 3° respects the constitutional principles of necessity and proportionality. More concretely, is it really necessary to know the reason for the trip, related to the place of departure and arrival, to pursue the purpose of adapting mobility offers and infrastructure to the demand of the population, or would it not be sufficient to know that X people are traveling from A to B, regardless of whether those individuals are going to their workplace, to school, to a supermarket, to a sports complex, or to their children's daycare?

It therefore considers it useful to analyze in more detail the personal data to which the Observatory would have access and whether their collection is truly necessary in light of the purposes for which they would be processed.

4.2. Regarding personal data

46.

In accordance with Article 5.1.b) of the GDPR, the personal data collected must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization)."

47.

The authors of the draft law explain in the commentary on the articles that "[t]o obtain as complete an overview as possible and to best adapt the State's investments in infrastructure and transport services to the needs of the country, and because the data held by different data holders on the same subject are often similar but not identical, it is necessary to compare and thus complement the data from several holders."

48.

In general, the National Commission notes that the same sets of data will be requested from different actors, such as data concerning the place of residence or the place of work. As the Observatory would only have access to pseudonymized data, without a "key allowing the re-identification of individuals," it wonders how the Observatory could then compare and cross-reference identical data resulting from different data sets within the framework of the same analysis.

CNPD

Opinion of the National Commission for Data Protection
regarding draft law no. 8251 establishing a digital mobility observatory

14/19

49.

With regard to the "data concerning the place of residence," does it refer solely to the name of the municipality or rather to the postal code, or even the exact address? In the latter case, it is very easy to link the address to a specific individual, and we would no longer be dealing with pseudonymized data. Furthermore, in the case of a postal code for a municipality with a low population, other information, such as household composition and workplace, could be sufficient to re-identify certain individuals through information cross-referencing. As mentioned in point 29, the CNPD recommends aggregation at a higher geographical level, at least by the name of the municipality and not by postal code.

50.

Similarly, in light of the purposes pursued, it does not understand the necessity of collecting data on the gender of the individuals concerned.

51.

The most complex issue in the eyes of the CNPD regarding personal data protection lies, however, in point 3° a) of Article 8.1 of the draft law, which provides that the Observatory would have access to "data concerning the movements of mobile phones and data on users allowing for the assessment of the representativeness of the user base, as held by mobile network operators and other providers of passive data of the 'Floating Mobile Data' type, provided that these holders have the right to share their

data."

52.

It first wishes to clarify that even if the legislator were to consider, as it repeatedly recommends in this opinion, the transfer of anonymized data to the Observatory, anonymizing data from telecommunications operators is a very complicated task. The EDPS had estimated in this context in an opinion on the use of location data in the context of the COVID-19 pandemic that "attempts at re-identification constitute active research areas. It is essential that data controllers using anonymization solutions keep abreast of recent developments in this field, particularly concerning location data (from telecommunications operators and/or information society services) that are deemed difficult to anonymize. Indeed, numerous studies have shown that it is possible for location data thought to be anonymized not to be truly so. The traces of individuals' movements are, by their very nature, highly correlated and unique and are, therefore, vulnerable to re-identification attempts under certain circumstances."

53.

Next, according to the commentary on the articles, "[T]he analysis of mobile phone rebounds on communication network antennas allows for estimating the... [Refer to Article 8.1 point 1°, a), b), e) and e) and point 2° a) of the draft law.] [Refer to Article 8.1 point 1°, e) of the draft law.] [Refer to points 21 and 25.] [Guidelines 4/2020 on the use of location data and contact tracing tools in the context of the COVID-19 pandemic, adopted on April 21, 2020, points 19 and 20.] CNPD

Opinion of the National Commission for Data Protection

on Draft Law No. 8251 establishing a Digital Mobility Observatory

15/19

number of movements made between different areas of the country at different times of the day. The processing is fundamentally different from triangulating the exact position of a phone. It is therefore not about locating a particular phone, but about understanding between which points "A" and "B" movements take place, and by what route." However, neither the text of the draft law nor the commentary on the articles clarifies what is specifically meant by "data concerning the movements of mobile phones."

54. The National Commission wishes to remind in this regard that telecommunications operators are subject to specific regulation, and more concretely to the amended law of May 30, 2005, concerning the protection of privacy in the electronic communications sector (hereinafter the "amended law of May 30, 2005"). In the event that the authors of the draft refer to traffic data, as well as location data, these can only be made available by a provider or operator of electronic communications services to judicial authorities under restrictive conditions and under penalty of criminal sanction.

55. By way of comparison, the Federal Public Service Mobility and Transport of Belgium had a project to award a public contract aimed at collecting location data from telecommunications operators across the entire Belgian territory in order to manage the flow of people. In its opinion regarding this project, the Belgian Data Protection Authority stated that "[t]aking into account these explanations and considering the sensitivity of the data concerned, the Commission believes that in order to meet the principle of proportionality, the applicant would be justified in this case to receive the requested data in an anonymized form, in accordance with Article 3 of the Royal Decree of February 13, 2001 implementing the privacy law." The said Authority also noted that "the analysis criteria must not undermine the anonymous nature of the transmitted data. It urges the applicant to exercise extreme caution to avoid rendering this data identifiable. True anonymization can prove difficult to achieve, and it is excluded that a combination of location data could still lead to identification."

56. Thus, in accordance with the provisions of the amended law of May 30, 2005, traffic and location data collected by providers or operators of electronic communications services can be requested "by the competent authorities for the purpose of resolving disputes, particularly in matters of interconnection or billing."

35 See definitions in Article 2. e) and f) of the amended law of May 30, 2005.

34 See Articles 5. 1.a) and 9. 1.a) of the amended law of May 30, 2005. Furthermore, based on Article 5.2 of said law, traffic data may be requested "by the competent authorities for the purpose of resolving disputes, particularly in matters of interconnection or billing."

35 Opinion No. 43/2016 of July 20, 2016, on the project of the Federal Public Service Mobility and Transport for the collection of location data regarding the flow of people on Belgian territory (CO-A-2016-028), point 26.

36 See the aforementioned opinion, point 28. See the results of this study on anonymized data at this link: <https://mobilit.belgium.be/sites/default/files/documents/Publications/2023/Mobilit%C3%A9%20et%20donn%C3%A9es%20t%C3%A9l%C3%A9com%20FR.pdf>.

CNPD

Opinion of the National Commission for Data Protection
regarding draft law No. 8251 establishing a Digital Mobility Observatory

16/19

****Electronic communications could, in principle, only be communicated to the Observatory if they have been anonymized beforehand.****

57. Lastly, it should be mentioned that in order to pursue the purpose set out in 3° of Article 8.1 of the draft law, the Observatory would have access to "data concerning the trips made and data on users allowing for the assessment of the representativeness of the user base, as held by the digital mobility assistance services." The said "digital mobility assistance services" are defined in Article 2 point 7 of the draft law as "services aimed at facilitating monomodal or multimodal travel through transport services, vehicles, personal mobility devices, or on foot." The authors of the draft law specify in the commentary on this article that this definition is derived from Article L1214-8-3 of the French Transport Code.

58. In the commentary on the articles, it is explained in this context that the Observatory would exploit as a source "[s]ystems that inform travelers about their mobility options, or that control access to mobility services [and that] collect information on the trips made." This provision follows the example of Article L1214-8-3 of the French Transport Code, which requires that "the relevant data related to trips and traffic held by the digital mobility assistance services [...] be made accessible [...] to the French authorities" in order to "improve the efficiency of public mobility policies, notably the design, implementation, and evaluation of public policies, including Mobility plans." The National Commission understands that the aforementioned services are, in fact, route calculators aimed at facilitating travel by multiple modes of transport (for example, train, bus, tram, taxi, bicycle, personal car, etc.) during the same journey. Nevertheless, it does not emerge from the text of the draft law, nor from the commentary on the articles, whether personal data is collected by these services to which the Observatory would, if applicable, have access. Without further clarification from the authors of the draft law, the CNPD cannot therefore express an opinion on this matter.

****5. Regarding the counting of vehicles by the Observatory (Article 9 of the draft law)****

59. Based on Article 9 of the draft law and in order to understand the "flows of vehicles across transport networks," the Observatory may carry out counts allowing for the recognition of a vehicle at multiple locations within the network. It is specified that "the data collected for this purpose must be destroyed within 24 hours and must not be used to identify the occupants or the owner of the vehicle." In the commentary on the articles, the authors of the draft law explain the usefulness of this vehicle counting by the Observatory by providing the following example: "For example, to understand what share of traffic on the... [text continues]."

****Highways A6 and A3 constitute international transit traffic; it is necessary to account for the license plates that have been detected within the travel time required at both the Belgian and French borders. Given the numerous intersections of the road network, such analyses, which are essential for analyses aimed at effective use and adaptation of the network, cannot be performed with simple counts.****

60. The CNPD wishes to remind in this context that the license plate is a personal data that indirectly allows for the identification of the vehicle holder and, therefore, all principles and obligations provided

by the GDPR must be respected, such as the principle of minimization mentioned in point 46 of this opinion. Nevertheless, without further explanations in the commentary on the articles, the CNPD wonders by what means the purpose provided for in Article 9 of the draft law would be achieved, that is to say, how the minister would carry out the counts allowing for the recognition of a vehicle at multiple locations within the transport network in order to understand the flow of vehicles through said network. Would achieving this purpose require the minister to install cameras capable of recording license plates throughout the country? Furthermore, the explanations from the authors of the draft law regarding the usefulness and especially the necessity of collecting the license plate and being able to track it across the country for 24 hours are not convincing. In other words, the National Commission doubts that the collection of the license plate is truly necessary in light of the purpose of understanding the flow of vehicles through transport networks and that less intrusive means to the privacy of the individuals concerned exist. More concretely, it considers that the system of permanent and automatic counting of roads in Luxembourg, currently operated by the Administration of Bridges and Roads, could be improved and developed in order to have an accurate view of the flow of vehicles within the country. Counters could also be installed at the borders to assess road traffic there.

****6. Regarding the rights of the individuals concerned****

61. The CNPD wishes to remind that all the rights of the individuals concerned enshrined by the GDPR must be respected by the data controller, that is to say, in this case, by the minister.

62. For example, in the current state of Articles 7 and 9 of the draft law providing for direct collection of personal data by the Observatory from the individuals concerned, the minister should therefore provide them at the time of the collection of personal data with all the information required by Article 13 of the GDPR. Furthermore, Article 8 of the draft law provides for a whole series of indirect collections of personal data by the Observatory, and therefore, Article 14 of the GDPR must be respected. Given the scope of the aforementioned Article 8 of the draft law, the minister should in principle provide the entire population of the Grand Duchy, as well as cross-border workers, with the information listed in Article 14 of the GDPR within a reasonable time after obtaining the personal data, but not exceeding one month.

63. Additionally, Article 15 of the GDPR grants any individual concerned the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, when it is, access to such personal data as well as certain information including the purposes of the processing carried out by the data controller, the categories of personal data concerned, or the recipients or categories of recipients to whom the personal data has been or will be disclosed.

64. Furthermore, under the conditions provided for in Articles 16 and 17 of the GDPR, the rights to rectification and erasure of the individual concerned must be respected by the data controller.

65. Finally, the National Commission emphasizes that, as the authors of the draft law believe that the processing of personal data carried out by the Observatory is necessary for the performance of a task carried out in the public interest in accordance with Article 6.1.e) of the GDPR, the right to object of the individuals concerned must be respected. Indeed, Article 21.1 of the GDPR provides that the individual concerned has the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them based on said Article 6.1.e) of the GDPR, unless the data controller "demonstrates that there are compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the individual concerned, or for the establishment, exercise, or defense of legal claims."

Thus adopted in Belvaux on November 10, 2023.

****The National Commission for Data Protection****

Tine A. Larsen
President

Thierry Lallemand

Commissioner

Marc Lemmer
Commissioner

Alain Herrmann
Commissioner

39 In accordance with Article 14.3.a) of the GDPR.